

CHAPTER 46.

An] Act to amend the law with respect to the enforcement by justices of the peace of the payment of money due by virtue of convictions of courts of summary jurisdiction or of orders in matters of bastardy or enforceable as affiliation orders, or due in respect of rates; and to make provision with respect to the mode of proof in certain proceedings before justices of the payment of wages. [2nd August 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Fines.

Fines, inquiry as to means of defaulter.

1.—(1) Where a court of summary jurisdiction adjudges a person to pay a sum by a conviction and allows time for payment, the court shall not on that occasion impose on the defendant a period of imprisonment in default of payment of that sum :

Provided that this subsection shall not have effect where the court on that occasion and in the presence of the defendant determines that for special reason, whether having regard to the gravity of the offence, to the character of the defendant or to other special circumstances, it is expedient that he should be imprisoned without further inquiry in default of payment.

(2) Where a period of imprisonment is imposed under the power reserved by the proviso to the foregoing subsection, the court shall state the reason for its determination and the reason stated shall be entered in the register kept under section twenty-two of the Summary Jurisdiction Act, 1879.

42 & 43 Vict.
c. 49.

(3) A warrant of commitment to prison in respect of the non-payment of a sum adjudged to be paid by a conviction of a court of summary jurisdiction shall not be issued in the case of a defendant who has been allowed time for payment, unless on an occasion subsequent to

his conviction the competent court has made inquiry as to his means in his presence :

Provided that this subsection shall not have effect—

(a) where a period of imprisonment in default of payment was imposed on the defendant on the occasion of his conviction under the power reserved by the proviso to subsection (1) of this section ; or

(b) in the case of a defendant who is in prison.

2.—(1) Where a court of summary jurisdiction for any petty sessional division or place has adjudged a person to pay a sum by a conviction and it appears to a justice of the peace having jurisdiction in that division or place that the defendant is residing in any other division or place, and that it is in the circumstances expedient so to do, he may make with respect to that sum an order for the purposes of this section.

Transfer
of jurisdic-
tion as to
fines.

An order made for the purposes of this section shall be termed a “ transfer of fine order ” and shall specify that other division or place.

(2) As from the date on which a transfer of fine order is made with respect to any sum, all functions in relation to that sum which, if such an order had not been made, would have been exercisable under any enactment (including this Act) by a court of summary jurisdiction for the division or place for which the convicting court acted, or by the clerk thereof, or by a justice of the peace having jurisdiction therein, shall be exercisable by a court of summary jurisdiction for the division or place specified in the order, or by the clerk thereof, or by a justice of the peace having jurisdiction therein, as the case may be, and not otherwise :

Provided that any payment received by virtue of a transfer of fine order by the clerk of a court other than the convicting court shall be forthwith transmitted by him to, and shall be accounted for by, the clerk of the convicting court.

(3) Where it appears to a justice of the peace having jurisdiction in the division or place in which functions in relation to any sum are for the time being exercisable by virtue of a transfer of fine order that the defendant is residing in another division or place, he may make a

further transfer of fine order with respect to that sum, and shall cause a copy thereof to be sent to the clerk of the convicting court.

Notice of
fines to
persons
liable.

3. Where a court of summary jurisdiction adjudges a person to pay a sum by a conviction and either—

(a) the court allows time for payment; or

(b) the defendant is not present on the occasion of the conviction;

the clerk of the court shall as soon as may be thereafter deliver to that person, or send by post addressed to him at his last or usual place of abode, a notice in writing stating the amount of that sum, the date on or before which payment thereof is required, and the place or places and times at which payment may be made, and, if payment by instalments is directed, particulars of the instalments.

Fines, de-
tention in
police
station in
lieu of im-
prisonment.

4. A court of summary jurisdiction or a justice of the peace may, in any circumstances in which the court or justice has, or if this Act had not passed would have had, power to issue a warrant of commitment to prison in respect of the non-payment of a sum adjudged to be paid by a conviction of such a court, in lieu of issuing such a warrant, issue a warrant of detention in a police station, and, unless that sum is sooner paid to the police officer holding the warrant, the warrant shall authorise any police constable to convey the person named therein to any convenient police station and for that purpose to arrest him, and shall authorise the officer in charge of any police station to detain him there till the hour of eight in the morning on the day following that on which he is arrested under the warrant or, if he is so arrested between midnight and eight in the morning on any day, on that day:

Provided that the officer in charge of the police station in which a person is detained under this section may discharge him at any time within two hours before the hour of eight in the morning if the officer thinks it expedient so to do in order to enable him to go to his employment or for any other reason appearing to the officer to be sufficient.

Fines,
supervision.

5.—(1) Where a person has been adjudged to pay a sum by a conviction of a court of summary jurisdiction

and has been allowed time for payment, the competent court may, either on the occasion of his conviction or on a subsequent occasion, order him to be placed under the supervision of such person as the court making the order may from time to time appoint.

(2) An order placing a person under supervision in respect of any sum may be discharged by the competent court and shall cease to have effect on the making of a transfer of fine order with respect to that sum (without prejudice however, in either case, to the power of the competent court to make a further order), but subject as aforesaid a person placed under supervision in respect of any sum shall so remain so long as he is under any liability in respect of that sum.

(3) A warrant of commitment to prison in respect of the non-payment of a sum adjudged to be paid by a conviction of a court of summary jurisdiction shall not be issued in the case of a defendant who is under supervision unless before issuing the warrant the court or justice, as the case may be, has taken such steps as may be reasonably practicable to obtain from the person appointed for the supervision of the defendant an oral or written report as to his conduct and means and has considered any report so obtained, in addition, in a case where inquiry is required by subsection (3) of section one of this Act to be made, to that inquiry.

(4) Subsection (3) of section one of the Criminal Justice Administration Act, 1914, shall cease to have effect. 4 & 5 Geo. 5.
c. 58.

6.—(1) A person who has not attained the age of twenty-one years shall not be committed to prison in respect of the non-payment of a sum which he has been adjudged to pay by a conviction of a court of summary jurisdiction and for the payment of which he has been allowed time unless he has been placed under supervision in respect of that sum : Fines,
supervision
of defaulters
under
twenty-one
obligatory.

Provided that this subsection shall not have effect where the court or justice having power to issue a warrant of commitment is satisfied that it is undesirable or impracticable to place him under supervision.

(2) Where a warrant is issued under the power reserved by the proviso to the foregoing subsection, the

grounds on which the court or justice is so satisfied as aforesaid shall be stated therein.

(3) For the purposes of this section a person shall be deemed not to have attained the age of twenty-one years if he appears to the court or justice not to have attained that age.

Fines,
allowance
of time to
persons out
of jurisdic-
tion of
court.

7. In subsection (1) of section one of the Criminal Justice Administration Act, 1914 (which relates to the obligation to allow time for payment of fines except in certain cases, including the case of a defendant who fails to satisfy the court that he has a fixed abode within its jurisdiction), the words "within its jurisdiction" shall cease to have effect.

Orders enforceable as affiliation orders.

Orders
enforceable
as affiliation
orders, in-
quiry as to
conduct and
remission.
35 & 36 Vict.
c. 65.

8.—(1) Section four of the Bastardy Laws Amendment Act, 1872 (which confers on justices of the peace discretionary powers for the enforcement of the payment of a sum due under an order in any matter of bastardy or under an order enforceable as an affiliation order, including a power to issue a warrant of commitment to prison), shall have effect subject to and in accordance with the following provisions, that is to say:—

- (a) on an application for the enforcement thereunder of the payment of any such sum as aforesaid, the justices shall make inquiry in the defendant's presence as to whether his failure to pay that sum was due either to his wilful refusal or to his culpable neglect;
- (b) if the justices are of opinion that the failure of the defendant to pay that sum was not due either to his wilful refusal or to his culpable neglect, a warrant of commitment to prison shall not be issued;
- (c) subject as aforesaid the said powers shall be exercisable as if this subsection had not passed.

(2) On an application for the enforcement, variation, revocation, discharge or revival of such an order as aforesaid, the justices may remit the payment of any sum due thereunder or of any part of any such sum.

(3) Where on an application for the enforcement of the payment of a sum due under such an order as aforesaid no warrant of commitment to prison is issued, the application may be renewed, except so far as regards any part of that sum remitted under the last foregoing subsection, on the ground that the circumstances of the person to whom the application relates have changed.

9. In subsection (3) of section thirty of the Criminal Justice Administration Act, 1914 (which relates to the revocation, revival or variation by a court of summary jurisdiction of an order for the periodical payment of money) the words "upon fresh evidence" shall cease to have effect, and fresh evidence shall not be required as a condition of the exercise of the power conferred on a court of summary jurisdiction by section seven of the Summary Jurisdiction (Married Women) Act, 1895, to increase or diminish the amount of a weekly payment.

Amendment
as to varia-
tion of
orders for
periodical
payments.

58 & 59 Vict.
c. 39.

Rates.

10.—(1) Section two of the Distress for Rates Act, 1849 (which confers on justices of the peace discretionary power to issue a warrant of commitment to prison of a person in relation to whom such return of insufficiency of distress as is therein mentioned has been made), shall have effect subject to and in accordance with the following provisions, that is to say,—

Rates, in-
quiry as to
conduct,
and remis-
sion.
12 & 13 Vict.
c. 14.

- (a) on an application for the issue of such a warrant, the justices shall make inquiry in that person's presence as to whether his failure to pay the sum or sums to which he was rated or assessed and in respect of which the warrant of distress was issued was due either to his wilful refusal or to his culpable neglect;
- (b) if the justices are of opinion that the failure of the defendant to pay the said sum or sums was not due either to his wilful refusal or to his culpable neglect, they shall not issue the warrant;
- (c) subject as aforesaid the said power shall be exercisable as if this subsection had not passed.

(2) Where on such an application as aforesaid no warrant is issued, the justices may remit the payment of any sum or sums to which the application relates, or of any part of that sum or of any of those sums.

(3) Where on such an application as aforesaid no warrant is issued, the application may be renewed, except so far as regards any sum or sums remitted under the last foregoing subsection, on the ground that the circumstances of the person to whom the application relates have changed.

54 Geo. 3.
c. 170.

(4) Section eleven of the Poor Relief Act, 1814 (so far as not already repealed), and proviso (b) to subsection

15 & 16

Geo. 5. c. 90.

(3) of section two of the Rating and Valuation Act, 1925, shall cease to have effect.

Miscellaneous and General.

Attendance
of defaulters
for purposes
of inquiry.

11.—(1) For the purpose of enabling inquiry to be made in his presence—

(a) as to the means of a person to whom time has been allowed for payment of a sum adjudged to be paid by a conviction of a court of summary jurisdiction and who has made default in the payment of that sum; or

(b) as to the conduct and means of a person in relation to whom a return of insufficiency of distress has been made as mentioned in section two of the Distress for Rates Act, 1849, in respect of a sum or sums rated or assessed upon him;

a justice of the peace having jurisdiction in the petty sessional division or place for which the competent court acts, or in which the return is made, as the case may be, may at any time issue a summons to that person to appear before that court, or before the justices of the peace having jurisdiction under that Act, as the case may be, and, if he does not appear in obedience to the summons, may issue a warrant for his arrest or, without issuing a summons issue in the first instance a warrant for his arrest.

(2) Where a warrant is issued under this section, then, unless the sum or sums in respect of which the warrant is issued is or are sooner paid to the police officer holding the warrant, the warrant may be executed in the like manner, and the like proceedings may be taken with a view to the execution thereof, in any part

of the United Kingdom, as if it had been a warrant of arrest issued under section two of the Summary Jurisdiction Act, 1848.

11 & 12 Vict.
c. 43.

12. A statement in writing to the effect that wages of any amount have been paid to a person during any period, purporting to be signed by or on behalf of his employer, shall be prima facie evidence of the facts therein stated in any proceedings taken before justices of the peace—

Statements
as to wages
to be evi-
dence.

- (a) for the enforcement of the payment by the person to whom the wages are stated to have been paid of a sum adjudged to be paid by a conviction or order of a court of summary jurisdiction;
- (b) on any application made by or against that person for the making of an order in any matter of bastardy or an order enforceable as an affiliation order, or for the enforcement, variation, revocation, discharge or revival of any such order; or
- (c) for the enforcement of the payment by that person of any sum or sums to which he has been rated or assessed.

13. No fee shall be chargeable by a clerk to justices in respect of any summons, warrant, notice or order authorised or required to be issued, given or made under this Act or under the rules made under this Act.

Prohibition
of charge
of fees.

14.—(1) The Minister of Health may issue such new or altered forms of proceedings in matters of bastardy as he may deem necessary or expedient for giving effect to the enactments relating to such proceedings as amended by this Act.

Rules and
forms.

(2) The Lord Chancellor may make rules for carrying this Act into effect with respect to any matter other than a matter which the Minister of Health has power to regulate by virtue of the foregoing subsection, and for prescribing forms to be used in connection with proceedings under this Act, the persons to whom payments of such sums as are mentioned in this Act may be made, the manner of accounting for such payments, and the records to be kept in relation thereto.

Interpreta-
tion.

15. In this Act—

- (a) references to allowance of time for payment include a reference to a direction for payment by instalments;
- (b) references to commitment to prison or to imprisonment or to prison shall not be deemed to include any reference to detention within the precincts of a court or at a police station under section twelve of the Criminal Justice Administration Act, 1914, or to detention in a certified place under section thirteen of that Act, or to detention at a police station under section four of this Act;
- (c) references to imprisonment in respect of non-payment of a sum adjudged to be paid by a conviction include references to imprisonment in respect of default of a sufficient distress to satisfy that sum;
- (d) the expression “the competent court” means in relation to any sum, the court by which payment of that sum was adjudged, or any other court of summary jurisdiction for the same petty sessional division or place, or, where by virtue of a transfer of fine order functions in relation to that sum are exercisable by another court, that other court;
- (e) the expressions “sum adjudged to be paid by a conviction” and “sum adjudged to be paid by an order” have the same meanings respectively as in the Summary Jurisdiction Act, 1879.

Short title,
repeal,
commence-
ment and
extent.

16.—(1) This Act may be cited as the Money Payments (Justices Procedure) Act, 1935.

(2) The enactments specified in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(3) This Act shall come into operation on the first day of January nineteen hundred and thirty-six.

(4) This Act (except subsection (2) of section eleven thereof) shall not extend to Scotland or Northern Ireland.

SCHEDULE.

Section 164

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
54 Geo. 3. c. 170.	The Poor Relief Act, 1814.	Section eleven, so far as not already repealed.
4 & 5 Geo. 5. c. 58.	The Criminal Justice Administration Act, 1914.	In section one, in subsection (1), the words "within its jurisdiction"; and subsection (3). In section thirty, in subsection (3), the words "upon fresh evidence".
15 & 16 Geo. 5. c. 90.	The Rating and Valuation Act, 1925.	In section two, in subsection (3), proviso (b).

CHAPTER 47.

An Act to provide for the imposition of restrictions upon development along the frontages of roads; to enable highway authorities to acquire land for the construction or improvement of roads or for preserving amenities or controlling development in the neighbourhood of roads; to extend the powers of local authorities as to the provision of accommodation for the parking of vehicles and as to the prevention of interference with traffic; and for purposes connected with the matters aforesaid. [2nd August 1935.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present